

6. The issue conference calendared May 15, 2026 and the trial, calendared for June 22, 2026, are confirmed.

24. 9:01 AM CASE NUMBER: C25-02047

CASE NAME: PETER MOREN VS. KATHRYN ROGERS

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF DEF KATHRYN CRAFT ROGERS**

FILED BY: MOREN, PETER GEORGE

TENTATIVE RULING:

Summary

Plaintiff George Moren ("Plaintiff") filed a Motion to Compel Deposition of Defendant Kathryn Rogers ("Defendant") on March 3, 2026. Plaintiff makes this motion on the grounds that Defendant has failed to appear for her deposition duly noticed and/or rescheduled the noticed deposition multiple times. In reviewing the moving and opposition papers, the Court notes that Defendant had submitted to her deposition on March 31, 2026. The Court finds and orders that this motion is **moot**. No appearance is required at the hearing on April 29, 2026.

This motion should have been vacated by Plaintiff. Plaintiff's request for sanctions in the form of attorney's fees and costs is **denied**. However, the Court orders that Plaintiff may recover the costs of the certified shorthand reporter retained for any missed depositions for which a court reporter had appeared and for which Plaintiff had paid the appearance fees of the court reported. Plaintiff shall provide a declaration, including an invoice for costs incurred for Defendant's missed deposition, to Defendant's Counsel. The costs shall be paid within thirty (30) days.